

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 3745 of 2010

In the matter of:

Md. Kaiser Ali and others.
...Petitioners.

-Vs-

Present
Mr. Justice Mamnoon Rahman

Md. Moshir Rahman and others.
....Opposite parties.

Mr. Sanjoy Kumar Kundu, Adv.
...For the petitioners.
Mr. Md. Azizul Islam, Adv.
...For the opposite party No. 1.

Heard & judgment on: **The 5th December, 2023**

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite party No. 1 to show cause as to why the impugned judgment and order dated 24.06.2010 complained of in the petition moved in court today, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

I have heard the learned Advocates for the petitioner as well as opposite party No. 1. I have perused the revisional application, ground taken thereon as well as necessary papers and documents annexed herewith.

On perusal of the same, it transpires that the suit is pending before the court below since 2009. In such circumstances, I am of the view that justice would be done if a direction be given upon the court

below to hear and dispose of the suit expeditiously, as possible, within a fixed period.

Accordingly, the court below is directed to hear and dispose of the suit, namely Title Suit No. 29 of 2009 strictly on merit by applying its independent and judicial mind within 3(three) months from the date of receipt of the instant order without fail and without giving any adjournment to the parties in any manner.

Since the order of status-quo is continuing from 2010 I am of the view that the same be continued for the period as directed by this court regarding disposal of the suit.

The trial court is further directed to inform this court about the disposal of the suit as directed, in writing, through the Registrar of the High Court Division within 7(seven) days from the date of disposal of the suit.

With this observation and direction, the instant rule is disposed of.

The office is directed to communicate the order to the concerned court below with a copy of the judgment, at once.

(Mamnoon Rahman,J:)